

STATE OF NEW YORK

10096--A

IN SENATE

April 28, 2026

Introduced by Sen. HINCHEY -- read twice and ordered printed, and when printed to be committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to the volunteer fire infrastructure and response equipment (V-FIRE) grant program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The executive law is amended by adding a new section 157-a
2 to read as follows:

3 § 157-a. Volunteer fire infrastructure and response equipment (V-FIRE)
4 grant program. 1. There is hereby established within the office of fire
5 prevention and control, the volunteer fire infrastructure and response
6 equipment (V-FIRE) grant program. The grant program shall be adminis-
7 tered by the commissioner of the division of homeland security and emer-
8 gency services for the purpose of awarding capital grants to support
9 projects which sustain or enhance fire prevention and response oper-
10 ations, and fire prevention and response services infrastructure and
11 equipment, including but not limited to buildings, training facilities,
12 technology and vehicles.

13 2. Subject to appropriation, grants shall be awarded each grant appli-
14 cation cycle on a competitive basis through an application process. The
15 commissioner of the division of homeland security and emergency services
16 shall provide updated information regarding the grant application cycle,
17 available funding, and additional grant information deemed relevant by
18 the commissioner prior to each grant application cycle.

19 3. Eligible entities that are located within the state and which serve
20 one or more municipalities in the state may apply for the grant program.

21 4. Each grant application cycle shall provide grants to:

22 (a) eligible facility projects; and

23 (b) eligible equipment projects.

24 5. The commissioner of the division of homeland security and emergency
25 services shall publish a report on the grant application cycle no later
26 than the thirtieth day after such grant application cycle has ended. The

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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report shall be published on the agency's website and shall include, but not be limited to, the following information:

(a) the total available funding for the grant application cycle;

(b) the total number of applicants who applied for a grant during the grant application cycle and, for each applicant:

(i) the total number of active firefighters and inactive firefighters in each fire department; and

(ii) the total amount requested per project type, per county; and

(c) a list of all awardees which shall include:

(i) each fire department, municipality and county served by awardee; and

(ii) the total amount awarded per project type and per county.

6. The commissioner of the division of homeland security and emergency services shall be authorized to promulgate rules and regulations to carry out the provisions of this section. Such rules and regulations may be included in the grant application and published on the agency's website.

7. For the purposes of this section, the following terms shall have the following meanings:

(a) "Available funding" shall mean the total appropriation made to the volunteer fire infrastructure and response equipment grant program and shall include the total available funding that will be awarded in the grant application cycle for each type of grant project and the maximum award for each grant project and each grantee.

(b) "Eligible equipment project" shall mean a project to support the repair, enhancement and installation of equipment used to support fire prevention and response operations including, but not limited to vehicles, firefighter rehabilitation equipment, communications technology and other safety equipment.

(c) "Eligible entity" shall include:

(i) a fire department;

(ii) a municipality;

(iii) a county, provided that such county is applying on behalf of a municipality or a fire department and provided further that such county has documented approval from the fire department or fire departments within the county that will directly benefit from the requested projects and that any additional pre-qualifications and submission of additional documentation required for the grant application are included and submitted with such application; and

(iv) two or more municipalities applying for a shared project that will benefit and be accessible to two or more fire departments.

(d) "Eligible facility project" shall mean a project for the acquisition, construction, renovation, rehabilitation and leasehold improvements of buildings owned or utilized by a fire department in the provision of services to the community served by the fire department, including, but not limited to, training facilities and infrastructure improvements to such buildings. For the purposes of this subdivision, electrical upgrades to a facility may be deemed to be infrastructure improvements.

(e) "Fire department" shall mean a fire department or fire company that is responsible for providing fire protection services to one or more municipalities in the state and that consists of one hundred percent volunteer firefighter membership. "Fire department" shall include nonprofit fire companies which may be subject to additional pre-qualifications or submission of additional documentation, as

1 required by the commissioner of the division of homeland security and
2 emergency services for the grant application cycle.

3 (f) "Grant application cycle" shall mean the period of time determined
4 by the commissioner of the division of homeland security and emergency
5 services that begins on the first day an applicant can submit an appli-
6 cation and ends no later than the sixtieth day after grant applicants
7 are notified of award decisions.

8 (g) "Municipality" shall mean a village, town, city or fire district
9 responsible for providing fire protection through a fire department as
10 defined in this section.

11 § 2. This act shall take effect on the first of April next succeeding
12 the date on which it shall have become a law. Effective immediately, the
13 addition, amendment and/or repeal of any rule or regulation necessary
14 for the implementation of this act on its effective date are authorized
15 to be made and completed on or before such effective date.